REPUBLIC OF KENYA

IN THE TRIBUNAL OF KENYA AT NAIROBI

COUNTY COURT NAME: SPORTS DISPUTES

TRIBUNAL CASE NUMBER: SDTSC/E100/2025

CHERYL ABIBA NGIMA AND FRED ONDIEKI SAGWE VS CHESS KENYA FEDERATION AND CHESS KENYA FEDERATION NATIONAL ELECTIONS BOARD AND 1 OTHERS

JUDGMENT

Panel:

1. Hon. Benard Murunga Wafula - Chairperson
2. Hon. Victor Omwebu - Member
3. Hon. Peris Mukoko - Member

Appearances:

Petitioners:
Mr. Ken Ochieng', Advocate instructed by Ken Ochieng' & Company Advocates

Respondents:
Mr. Ochutsi Munyendo, Advocate instructed by Ochutsi Munyendo & Company Advocates

1. Parties

2. The 1st Petitioner, Cheryl Abiba Ngima, is a female adult of sound mind, an arbiter affiliated to the 1st Respondent and a chess player formerly playing with Black Knights Chess Club and an active member of the 1st Respondent.

3. The 2nd Petitioner, Fred Ondieki Sagwe, is an adult male of sound mind, a former Chairperson of the 1st Respondent's Chess in Schools Committee, a chess player at Para Chess Club and an active member of the 1st Respondent.

4. The 1st Respondent, Chess Kenya Federation (CKF), is the governing body in charge of the game of chess in Kenya and the National Sports Organization duly registered as such under the Sports Act, 2013.

5. The 2nd Respondent, Chess Kenya Federation National Elections Board (NEB), is the electoral body elected on 28th September 2025 pursuant to Article 9.3 of the 1st Respondent's Constitution to conduct elections of the 1st Respondent's national office bearers.

6. The Interested Party, the Registrar of Sports, an officer in the Public Service, appointed under Section 45 of the Sports Act, 2013 and is responsible for *inter alia*, the registration and regulation of sports organizations, licensing of professional sports and professional sports persons in accordance with the provisions of the Sports Act, 2013

2. Pleadings and preliminaries

7. The Petitioners have approached this Tribunal through their Petition dated 18th December 2025 challenging the legality of the composition of the National Elections Board (NEB) of the Chess Kenya Federation (CKF) and the constitutionality and legality of Article 9.1.2 of the CKF Constitution, which requires aspirants to form an eight-person election ticket as a precondition to vie for national office.

8. The Petition is supported by the Affidavit of the 1st Petitioner, Cheryl Abiba Ngima, sworn on 18th December 2025. In response thereto, the 1st Respondent filed a Replying Affidavit dated 16th January 2026 through its Secretary General, John Mukabi. The 2nd Respondent did not file any response to the Petition.

9. The Interested Party did not enter appearance or file any response to the Petition.

10. The Petitioners filed their written submissions dated 28th January 2026 and the 1st Respondent filed its written submissions dated 2nd February 2026.

Petitioners' Case

11. Both Petitioners assert that they are both active members of CKF and prospective candidates in the forthcoming CKF national elections scheduled for 28th February 2026.

12. On 28th September 2025, the 1st Respondent's Annual General Meeting elected and/or constituted the National Elections Board (NEB) comprising of Karoli Lwanga (Chairperson), Hugh Misikho, Zadock Nyakundi, Cynthia Kyalo and Lenox Mangi as members.

13. By dint of Article 9.1.0 of the CKF constitution, elections of national office bearers are to be held, at least, once every four years on the last Saturday of the month of February meaning that the elections must be held on 28th February 2026. Accordingly, on 26th November 2025, the NEB issued a notice declaring that CKF national elections would be held on 28th February 2026.

14. However, the Petitioners are concerned about the legality of the composition of the National Elections Board (NEB) of CKF and the constitutionality and legality of Article 9.1.2 of the CKF Constitution, which requires aspirants to form an eight- person election ticket as a precondition to vie for national office.

15. The Petitioners allege that each NEB member is either actively engaged in the game of chess and/or the activities of CKF or some are officials, arbiters or players of clubs that are members of CKF. The Petitioners also allege that some of the NEB members have affiliations to different contestants in the forthcoming elections thereby, their independence is not assured as required under Regulation 20(2)(a) of the Sports Registrar Regulations, 2016.

16. The Petitioners further challenge Article 9.1.2 of the CKF Constitution, which requires aspirants to form an eight-person election ticket, arguing that it imposes unreasonable and discriminatory restrictions contrary to Article 27 and Article 38(3)(c) of the Constitution of Kenya and Regulation 20(2)(c) of the Sports Registrar Regulations, 2016.

17. The 1st Petitioner states that she wrote to the Sports Registrar on 22nd October 2025 raising these concerns but that she received no response.

18. The Petitioners contend that the Respondents have acted contrary to the Sports Act, the Sports Registrar Regulations, 2016 and the Constitution of Kenya and they seek the following reliefs from the Tribunal: -

i. *A declaration that the Respondents contravened Regulation 20(2) (a) of the Sports Registrar Regulations, 2016 by failing to appoint an independent panel for the purposes of conducting the forthcoming CKF elections;*

ii. *A declaration that the NEB, as presently constituted, lacks the independence requisite of such a panel and an order be issued for its dissolution on that account;*

iii. *A declaration that Article 9.1.2 of the CKF constitution and the Respondents' actions allegedly undertaken pursuant thereto, impose unreasonable restrictions to candidacy in national elective posts and/or are discriminatory for locking out aspirants who do not have an election ticket comprising of eight persons vying for the eight elective positions;*

iv. *An order directing the 1st Respondent to urgently convene an AGM to reconstitute the membership of the 2nd Respondent in compliance with Regulation 20(2) (a) of the Sports Registrar Regulations, 2016, Article 38*
(3) (c) of the Constitution of Kenya, 2010 and/or amend any of its statutes that contravene the said laws;

v. *An order of permanent injunction restraining the Respondent from submitting, for ratification by its AGM, the names of Karoli Lwanga, Hugh Misikho, Zadock Nyakundi, Cynthia Kyalo and Lenox Mangi as members of the 2nd Respondent, NEB; and*

vi. *Costs of the Petition to be awarded to the Petitioners.*

1st Respondents' case

19. The 1st Respondent opposes the Petition and avers that the Petitioners admit that they attended the AGM of 28th September 2025 that duly installed the NEB.

20. The 1st Respondent asserts that the elevation of the members in issue to the NEB was purely an outcome of an elective process that the Petitioners participated in and as contemplated by the 1st Respondent's constitution.

21. The 1st Respondent further asserts that the election and/or appointment of the NEB was borne out of a democratic process undertaken in tandem with the provisions of the CKF constitution and therefore it is not open for the Petitioners to now challenge the outcome thereof.

22. The 1st Respondent further asserts that the election of the NEB members was a decision of the AGM rather than a decision of the executive committee of CKF, with the Petitioners' involvement and participation.

23. The 1st Respondent contends that the present suit is premised upon misplaced apprehensions and that the Petitioners have not demonstrated any potential interference in the elections by the NEB. The 1st Respondent holds the view that no evidence has been tendered by the Petitioners to establish that the constitution of the NEB, as done through the CKF AGM, will occasion any bias or prejudice to the upcoming elections.

24. The 1st Respondent further urges the Tribunal not to entertain the Petition on the basis of the doctrine of *estoppel* since the Petitioners attended and participated in the AGM that constituted the NEB.

25. Finally, the 1st Respondent contends that the Tribunal should only exercise its jurisdiction after establishing that the Petitioners have invoked and exhausted the internal dispute resolution mechanism(s) as provided for within the 1st Respondent's constitution and which mechanism(s) the 1st Respondent asserts that the Petitioners never invoked.

4. Issues for determination

26. The Tribunal identifies the following issues for determination: -

a) Whether the Tribunal has jurisdiction to entertain this Petition.
b) Whether the Petition is admissible.
c) Whether the composition of the NEB violates Regulation 20(2)(a) of the Sports Registrar Regulations, 2016.
d) Whether Article 9.1.2 of the CKF imposes unreasonable or discriminatory restrictions on candidacy of aspirants for national office bearers.
e) What remedies, if any, should issue- Disposition.
f) Costs.

5. Analysis and determination

a) Whether the Tribunal has jurisdiction to entertain this Petition.

27. Section 58 of the Sports Act grants the Tribunal jurisdiction to determine disputes relating to sports organizations. In that regard, the Tribunal has *inter alia*, jurisdiction over appeals from decisions of sports organizations, matters referred to it by sports organizations and disputes that the Tribunal deems appropriate to hear.

28. Article 14.1 of the CKF Constitution, 2021 provides that *"All disputes related to the game of chess <u>except</u> those arising from national elections shall be resolved at first through an internal dispute resolution mechanism and only upon failure to resolve the dispute shall they be referred to the Sports Dispute Tribunal or any other body."*

29. This provision of the CKF constitution therefore establishes a mandatory internal dispute resolution (IDRM) process for all chess-related disputes, save for national election disputes. It creates a two-tiered dispute resolution structure with the primary jurisdiction vesting in the Federation's internal dispute resolution mechanism and secondary jurisdiction vesting in the Sports Disputes Tribunal (SDT) or another competent body, but only after internal mechanisms have been exhausted or have failed with the exclusion to disputes arising from national elections.

30. The present suit is in respect of the national elections of CKF slated for 28th February 2026. The exclusion of national election disputes from the 1st Respondent's IDRM is deliberate and significant because Article 14.1 of the CKF constitution is consistent with the framework stipulated in Section 58 of the Sports Act since it requires exhaustion of internal mechanisms, but does not oust the Tribunal's jurisdiction and expressly preserves direct access to the Tribunal for election disputes.

31. Accordingly, the Tribunal finds and holds that it has the requisite jurisdiction to hear and determine the present suit.

<u>b) Whether the Petition is admissible.</u>

32. The Petitioners are active members of CKF and prospective candidates in the forthcoming election. The NEB has been constituted and has commenced

electoral processes including issuance of the election notice. The dispute is therefore ripe for this forum and the Tribunal finds and holds that the Petition is admissible.

c) Whether the composition of the NEB violates Regulation 20(2)(a) of the Sports Registrar Regulations, 2016.

33. The Tribunal is called upon to determine whether the NEB elected during the AGM held on 28th September 2025 satisfies the statutory requirement of independence.

34. Independence under Regulation 20(2)(a) requires structural, functional and perceptual neutrality. It is not sufficient that actual interference is unproven; the electoral body must also be free from reasonable apprehension of bias. In determining whether the National Elections Board meets the statutory requirement of independence and impartiality, the Tribunal will anchor its analysis upon the established statutory architecture governing the conduct of elections of sports organizations and evaluate the competing arguments within that legal framework.

35. Additionally, Paragraph (d) of the Second Schedule to the Sports Act, 2013 stipulates that, elections of a sports organization *"shall be held in accordance with the general principles for the electoral system as stipulated in Article 81 of the Constitution."*

36. Furthermore, Article 81 of the Constitution of Kenya makes it mandatory for electoral systems to comply with *inter alia*, freedom of citizens to exercise their political rights under Article 38, universal suffrage based on the aspiration for fair representation and equality of vote, free and fair elections which are conducted by an independent body and administered in an impartial, neutral, efficient, accurate and accountable manner. An independent elections board is therefore the mechanism through which these democratic principles are operationalized.

37. It therefore follows that the National Electoral Board is part and parcel of the election process from the very inception to the end. Regulation 20 (1) of the Sports Registrar Regulations stipulates that *"an organization shall hold election in accordance with the Rules provided in its constitution."*

38. The Constitution of Chess Kenya Federation, 2021 makes provision for matters relating to the national elections of KCF. More specifically, Article 9 thereof provides for national elections and the national elections board. Article 9.3 stipulates that: -

"A General Meeting, not being a General Election meeting, shall form a National Elections Board to conduct elections of the Federation's National office bearers."

39. Article 9.3.1 further stipulates that: -

"The NEB shall consist of not less than five members who will Act as such for a period of four (4) years or until they are replaced in a General Meeting whichever is earlier."

40. Regulation 20(2)(a) of the Sports Registrar Regulations provides that *"Notwithstanding paragraph (1), a sports organization seeking to hold an election shall appoint an independent panel consisting of at least five members to conduct the election"*

41. Black's Law Dictionary 4th Ed. Rev, defines the word "independent" as *"Not dependent; not subject to control, restriction, modification, or limitation from a given outside source."* The statutory intention of Regulation 20(2) (a) is therefore unmistakable: the body running the election must be structurally and functionally separate from the sports organization's day-to-day leadership or activities. Independence encompasses both actual and perceived neutrality.

42. It is common ground that the 2nd Respondent, the National Elections Board (NEB), was constituted at the AGM of 28th September 2025 held at KCB Sports Club. It is also common ground that during that AGM, the NEB was constituted pursuant to Article 9.3 of the CKF Constitution and the NEB members elected were: -

1. Karoli Lwanga – Chairperson
2. Hugh Misikho – Member
3. Zadock Nyakundi – Member
4. Cynthia Kyalo – Member
5. Lenox Mangi – Member

43. The Respondents do not deny the Petitioners' claims that: -

i. Karoli Lwanga is a director and player at Nairobi Chess Academy where one of its founding member and director by the name Gilbert Wandera is contesting in the upcoming election;

ii. Hugh Misikho plays for KCB and is Vice Chair of Uasin Gishu Chess Association alongside Faith Leting (Chairperson) and who is

contesting for a national office position in the upcoming election;

iii. Zadock Nyakundi is a member of Black Knights owned by Antony Kionga who is a contestant in the upcoming national election;

iv. Cynthia Kyalo is an active arbiter; and

v. Lenox Mangi is an active player and arbiter with Knight Chess Club.

44. As a matter of fact, the 1st Respondent's Secretary General at paragraph 22 of his Replying Affidavit clearly provides a table setting out particulars that identify the clubs which the NEB members belong to.

45. More specifically, the 1st Respondent's Secretary General confirms that Karoli Lwanga, Cynthia Kyalo, Hugh Misiko, Zaddock Nyakundi and Lennox Mwangi belong to or hold positions in chess clubs as follows: - Nairobi Chess Club and Academy, Fide Arbiter, Vice Chair-Uasin Gishu County Association and KCB Chess Member, Black Knights Chess Club and Knights Chess Academy, respectively.

46. The same position is confirmed from the minutes of the AGM produced in the 1st Respondent's Replying affidavit sworn by John Mukabi through his annexure marked ***"JM-2"*** and more specifically **Min. AGM 1.19/2025**.

47. Thus, the membership and/or affiliations of the NEB members to would be candidates or aspirants closely aligned to them are uncontested. Given that the NEB members are individuals actively involved in the sport of chess and demonstrably affiliated to certain candidates contesting the election, these affiliations create reasonable apprehension of bias even if no actual interference is proven.

48. Moreover, such connections create a direct stake in the governance and leadership of the federation hence a direct interest in the outcome of the election cannot be ruled out. The provisions of the Sports Act and Sports Registrar Regulations analyzed here above collectively impose a mandatory duty on sports organizations to ensure that the body administering elections is structurally, functionally, and perceptually independent.

49. Accordingly, the combination of active involvement in the sport of chess and affiliation to candidates undermines the NEB's ability to be perceived as neutral. Additionally, the general principles for a democratic electoral system envisaged under Paragraph (d) of the Second Schedule to the Sports Act, 2013 as read together with Article 81 of the Constitution of

Kenya cannot be guaranteed and is thereby likely to be violated.

50. The 1st Respondent's only dispute is the legal effect of the NEB election, not the facts. In a bid to diminish the Petitioners' concerns, the 1st Respondent has invoked the doctrine of estoppel to dissuade the Tribunal from considering the Petition on the assertions that the Petitioners attended and participated in the AGM that

constituted the NEB.

51. Estoppel is an equitable doctrine. A bar that prevents one from asserting a claim or right that contradicts what one has said or done before, or what has been legally established as true.

52. The Tribunal respectfully hesitates to accept that argument within the context of this case and holds the humble view that estoppel cannot be used to shield an unlawful rule simply because a member was present at the AGM where it was passed. Presence is not consent, and consent is not a waiver of legality.

53. Whereas generally speaking, estoppel prevents a party from denying a representation they made, going back on a position they previously adopted, or acting inconsistently to the detriment of another party, it cannot validate an illegality, override statute or cure a constitutional defect. Estoppel prevents inconsistent procedural challenges unless fundamental illegality is demonstrated.

54. In any event, the Tribunal cannot countenance an illegality that it has already found and held to have occurred at the 1st Respondent's AGM held on 28th September 2025. The Court in *Hippoh & 6 others v Kimong & 2 others* *[2025] KEELC 6800 (KLR)* held that ***"estoppel cannot be used to validate that which the law expressly prohibits"***

55. Similarly, the court in *Mycredit Limited v Micro and Small Enterprises Tribunal; African Herbal Ingredient Wholesalers Limited (Interested Party)* *[2026] KEHC 1206 (KLR)* *held that* ***"Estoppel cannot negate illegality and neither can it be invoked to override jurisdiction."***

56. In *Henry Muthee Kathurima v Commissioner of Lands & another [2015] eKLR* the court stated: -

> ***"It is our view that estoppel cannot be used as shield to protect unlawfully acquired property; estoppel cannot be***

used to circumvent Constitutional provisions and estoppel cannot override express statutory procedures; there can be no estoppel against a statute.”

57. The Tribunal thereby finds and holds that the NEB, as constituted, does not meet the independence threshold stipulated in Regulation 20(2)(a) of the Sports Registrar Regulations, 2016.

d) Whether Article 9.1.2 of the CKF imposes unreasonable or discriminatory restrictions on candidacy of aspirants for national office bearers.

58. Article 9.1.2 of the CKF constitution requires aspirants to form an eight-person election ticket with gender, regional, and ethnic diversity. The Article provides that:

> *"Persons wishing to contest for positions of National Office Bearers shall form an election ticket comprising of eight persons vying for the eight elective positions, and such a ticket shall not have more than 2/3 members of the same gender and shall also have regional and ethnic diversity."*

59. Article 7 of the CKF Constitution creates 8 distinct offices and stipulates that the national office shall comprise of President, Vice President, Secretary-General, Deputy Secretary-General, Treasurer, Deputy Treasurer, Branch Secretary and Gender and Special Interest Secretary.

60. Therefore, the practical effect of the 8-Person ticket requirement in Article 9.1.2 is that it requires aspirants to assemble a full slate of eight persons. This creates a high threshold that many otherwise qualified individuals cannot meet. Invariably, this requirement has the effect of excluding individuals who cannot marshal a full slate even though an aspirant may be competent, experienced, respected and democratically supported by the electorate but unable to assemble a full 8-person coalition.

61. This has nothing to do with merit or leadership ability. It is inimical to Regulation 20 (2) (c) of the Sports Registrar Regulations which provides that *"a sports organization seeking to hold an election shall observe the principle of non- discrimination as provided in their constitution."*

62. Article 9.1.2 of the CKF constitution inevitably, restricts individual candidacy, excludes independent aspirants, imposes a structural barrier unrelated to merit or democratic participation, and violates Article 38 and 81 of the Constitution of Kenya 2010, which guarantees aspirants to an election the right to vie without unreasonable restrictions.

63. Article 9.1.2 requires aspirants to form a single eight-person election ticket that must simultaneously satisfy gender, regional, and ethnic diversity thresholds. While the intention may be inclusivity, the mechanism is deeply flawed. The consequential effect is that aspirants are forced into alliances they may not want hence coercive coalition building, tokenism and artificial bargaining become practical irrationalities that aspirants must engage in so as to achieve the eligibility criteria.

64. It violates constitutional principles of open, competitive elections and thereby undermines democratic participation by creates structural irrationalities. Eligibility requirements must be reasonable, proportionate, and not arbitrary. A rule that bars a qualified person simply because he or she cannot find seven running mates is plainly unreasonable and discriminatory.

65. The Tribunal accordingly finds that Article 9.1.2 of the CKF constitution imposes unreasonable and discriminatory restrictions on candidacy.

g) Disposition.

66. In light of the foregoing findings, the Tribunal is satisfied that both the composition of the National Elections Board and the impugned provisions of Article
9.1.2 of the CKF Constitution fall short of the governing statutory and constitutional standards. The NEB as presently constitute and the eight-person ticket are irreconcilable with Article 38 and 81 of the Constitution of Kenya, as well as Regulations 20(2) (a) &(c) of the Sports Registrar's Regulations. Judicial intervention is therefore necessary to safeguard the integrity of the forthcoming CKF national elections and to restore compliance with the applicable legal framework.

67. Having found as above, the reliefs that commend themselves to the Tribunal are as follows: -

1. A declaration is hereby issued that the Chess Kenya Federation National Elections Board, as presently constituted, does not meet the independence requirements of Regulation 20(2)(a) of the Sports Registrar's Regulations, 2016.

2. A declaration is hereby issued that all the electoral processes initiated and undertaken by the Chess Kenya Federation National Elections Board are null and void.

3. An Order is hereby issued dissolving the Chess Kenya Federation National Elections Board comprising of Karoli Lwanga, Hugh Misikho, Zadock Nyakundi, Cynthia Kyalo and Lenox Mangi.

4. A declaration is hereby issued that Article 9.1.2 of the Chess Kenya Federation Constitution imposes unreasonable and discriminatory restrictions on candidacy of aspirants, contrary to Articles 38 and 81 of the Constitution of Kenya, 2010

and Regulation 20(2)(c) of the Sports Registrar's Regulations, 2016.

5. An Order is hereby issued suspending the application of Article 9.1.2 of the Chess Kenya Federation and the Tribunal directs that Article 9.1.2 is inapplicable to the Federation's elections.

6. An Order is hereby issued directing the 1st Respondent to convene a Special General Meeting within 21 days of this judgment for the sole purpose of constituting a new National Elections Board in full compliance with the law.

7. Each party shall bear its own costs.

Dated and delivered at Nairobi this 25th day of February, 2026

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SIGNED BY/FOR:
HON. BENARD MURUNGA WAFULA
(CHAIRPERSON) HON. PERIS MUKOKO
HON. VICTOR OMWEBU

THE JUDICIARY OF KENYA.
SPORTS DISPUTES TRIBUNAL
SPORTS DISPUTES TRIBUNAL
DATE: 2026-02-25 16:25:23